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Case Number: 26STCV05364 Hearing Date: August 4, 2026 Dept: 224

Meza v. SOCAL4LLC dba Domino's Pizza et al.,

TENTATIVE RULING

An agreement to arbitrate exists. The dispute is covered by the Agreement. Plaintiff's individual PAGA claim may be compelled to arbitration. Respondent does not dispute the existence of an agreement, as the Petition is unopposed.

The Petition to Compel Arbitration is GRANTED. Petitioner and Respondent are ordered to arbitration.

Plaintiff's non-individual representative PAGA claims are STAYED pending arbitration of the individual claims. Post-Arbitration Status Conference and Lifting of the Stay of Non-Individual PAGA claims, is set for August 2, 2027 at 8:30 a.m. The parties are ordered to file a joint status report 5 court days before the hearing.

ANALYSIS

Introduction

On February 17, 2026, Plaintiff Brandon A. Meza filed this action against Defendant SoCal4 LLC dba Domino's Pizza on behalf of himself and other allegedly aggrieved employees, asserting a single representative claim for civil penalties under the Labor Code Private Attorneys General Act of 2004, Labor Code section 2698 et seq. ("PAGA").

On May 13, 2026, Defendant filed its Notice of Motion and Motion to Compel Arbitration of the Individual PAGA Claim and Stay the Remainder of the Action.

No opposition has been filed.

Legal Standard

In a motion to compel arbitration, the moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The burden then shifts to the resisting party to prove by a preponderance of evidence a ground for denial (e.g., fraud, unconscionability, etc.). (Rosenthal v. Great Western Fin.

Securities Corp. (1996) 14 Cal.4th 394, 413-414; Hotels Nevada v. L.A. Pacific Center, Inc. (2006) 144 Cal.App.4th 754, 758.)

Generally, on a petition to compel arbitration, the court must grant the petition unless it finds either (1) no written agreement to arbitrate exists; (2) the right to compel arbitration has been waived; (3) grounds exist for revocation of the agreement; or (4) litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Code Civ. Proc., § 1281.2; Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218-219.)

"California has a strong public policy in favor of arbitration and any doubts regarding the arbitrability of a dispute are resolved in favor of arbitration." (Coast Plaza Doctors Hospital v. Blue Cross of California (2000) 83 Cal.App.4th 677, 686.) "This strong policy has resulted in the general rule that arbitration should be upheld unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute." (Ibid. [internal quotations omitted].) This is in accord with the liberal federal policy favoring arbitration agreements under the Federal Arbitration Act ("FAA"), which governs all agreements to arbitrate in contracts "involving interstate commerce." (9 U.S.C. § 2, et seq.; Higgins v. Superior Court (2006) 140 Cal.App.4th 1238, 1247.)

Federal Arbitration Act

Federal law applies to arbitration provisions in contracts involving interstate commerce. (Higgins v. Sup. Ct. (2006) 140 Cal.App.4th 1238, 1247.) Where the Federal Arbitration Act applies, state procedural rules govern the determination of a motion to compel arbitration. (Vivid Video Inc. v. Playboy Ent. Group, Inc. (2007) 147 Cal.App.4th 434, 440.) "Even when the Federal Arbitration Act applies, state law governs such matters as who is bound by and who may enforce an arbitration agreement." (Thomas v. Westlake (2012) 204 Cal.App.4th 605, 614 n. 7.)

The Agreement expressly provides that it "is covered by and made pursuant to the Federal Arbitration Act (the 'FAA'), 9 U.S.C. § 1 et seq., and shall be construed, interpreted, governed, and enforced in accordance with the FAA." (Lessa Decl., Exh. 1, § 4.)

The FAA applies.

The Existence of an Agreement

A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (CCP § 1281.2) The party seeking arbitration has the initial "burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.4th 836, 842.) A moving party meets its initial burden by showing the agreement at issue exists, and need only establish its validity on challenge by opponent. (HM DG, Inc. v. Amini (2013) 219 Cal.App.4th 1100, 1114; Espejo v. Southern Calif. Permanente Med. Group (2016) 246 Cal.App.4th 1047, 1060.)

Defendant submits the Agreement in question as Exhibit 1 to the Declaration of Amber Lessa. (Lessa Decl., Exh. 1.) The document is titled "MUTUAL VOLUNTARY AGREEMENT FOR INDIVIDUAL ARBITRATION" and bears a handwritten signature on the signature line above the printed "Your Signature." (Id.) The Agreement identifies the contracting parties as "Brandon Meza" and SOCAL4, LLC. (Id.) Defendant also submits, as Exhibit 2, a "Mutual Voluntary Agreement for Arbitration Acknowledgement" also bearing Plaintiff's handwritten signature. (Lessa Decl., Exh. 2.)

The Agreement states that "any and all claims, disputes, causes of action, lawsuits,

proceedings, and/or controversies ('Claims'), past, present, or future, relating to or arising out of Your employment with the Company" will be submitted to binding arbitration pursuant to the Agreement." (Lessa Decl., Exh. 1.)

"With respect to the moving party's burden to provide evidence of the existence of an agreement to arbitrate, it is generally sufficient for that party to present a copy of the contract to the court." (Baker v. Italian Maple Holdings, LLC, 13 Cal. App. 5th 1152, 1160 (2017).)

There is an existing and enforceable Agreement.

Further, the dispute is covered by the Agreement. The action arises out of Labor Code violations Plaintiff personally sustained during his employment as a delivery driver.

Further, under Viking River Cruises, Inc. v. Moriana (2022) 596 U.S. 639, an employee's individual PAGA claim may be compelled to arbitration notwithstanding PAGA's representative character. Under Adolph v. Uber Technologies, Inc. (2023) 14 Cal.5th 1104, an order compelling the individual claim to arbitration does not strip the plaintiff of standing to pursue the non-individual claim in court.

An agreement to arbitrate exists. The dispute is covered by the Agreement. Plaintiff's individual PAGA claim may be compelled to arbitration. Respondent does not dispute the existence of an agreement, as the Petition is unopposed.

The court must grant the petition unless it finds either (1) no written agreement to arbitrate exists; (2) the right to compel arbitration has been waived; (3) grounds exist for revocation of the agreement; or (4) litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Code Civ. Proc., § 1281.2; Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218-219.) None of these circumstances are present. Accordingly, the Court must grant the Petition.

Staying the Representative Claims

As concluded by the California Supreme Court, in "a worker becomes an 'aggrieved employee' with standing to litigate claims on behalf of fellow employees upon sustaining a Labor Code violation committed by his or her employer. [Citations.] Standing under PAGA is not affected by enforcement of an agreement to adjudicate a plaintiff's individual claim in another forum. Arbitrating a PAGA plaintiff's individual claim does not nullify the fact of the violation or extinguish the plaintiff's status as an aggrieved employee..." (Adolph, supra, 14 Cal.5th at p.1121.) Thus, "where a plaintiff has filed a PAGA action comprised of individual and non-individual claims, an order compelling arbitration of individual claims does not strip the plaintiff of standing to litigate non-individual claims in court." (Adolph, supra, 14 Cal.5th at p.1123.)

Here, Plaintiff has alleged Labor Code violations while working for Defendants, as well as representative claims. "[Plaintiff]'s allegations that Labor Code violations were committed against him while he was employed by [Defendants] suffice to confer standing to bring a PAGA action." (Adolph, supra, 14 Cal.5th at p.1121.) The Court is not precluded from splitting a PAGA action into arbitrable and non-arbitrable claims. (Barrera v. Apple American Group LLC (2023) 95 Cal.App.5th 63, 84; (Adolph, supra, 14 Cal.5th at p.1123.)

The fact that the individual PAGA claims are being compelled to arbitration will not deprive Plaintiff of standing to pursue his representative PAGA claims. (Adolph, supra, 14 Cal.5th at p.1123.)

Plaintiff's non-individual representative PAGA claims are STAYED pending arbitration of the individual claims.

Conclusion

An agreement to arbitrate exists. The dispute is covered by the Agreement. Plaintiff's individual PAGA claim may be compelled to arbitration. Respondent does not dispute the existence of an agreement, as the Petition is unopposed.

The Petition to Compel Arbitration is GRANTED. Petitioner and Respondent are ordered to arbitration.

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Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.